



Lockheed Martin – Ultra Maritime

MN-75041

Phase 1 Determination

Acquisition may be put into effect

11 September 2026

1. Determination and statement of reasons

Notified acquisition	Lockheed Martin Corporation (Lockheed Martin) proposes to acquire the entire issued share capital of Ultra Electronics Australia Pty Limited (Ultra Electronics Australia), Ultra Sonar Systems Ltd., Ultra Electronics Maritime Systems, Inc., Ultra Electronics, Inc. and their direct and indirect subsidiaries (together comprising Ultra Maritime) (the Acquisition). RLM Systems Pty Limited an indirect, wholly-owned subsidiary of Lockheed Martin will acquire all of the issued share capital of Ultra Electronics Australia. Following completion, Ultra Electronics Australia and its subsidiaries will become wholly-owned subsidiaries within the Lockheed Martin Group.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Lockheed Martin, is a global aerospace and defence company headquartered in Bethesda, Maryland, US. Lockheed Martin researches, designs, develops, manufacturers and sustains advanced technology systems, products and services for defence, security and aerospace customers. In Australia, Lockheed Martin's operations are predominantly conducted through its wholly owned subsidiary, Lockheed Martin Australia Pty Ltd. The target, Ultra Maritime, is a naval defence technology business headquartered in Braintree, Massachusetts, US, with manufacturing facilities in the US, Canada, the UK and Australia. Ultra Maritime designs, develops and supplies maritime and undersea warfare solutions for manned and unmanned platforms, including sonar systems, sonobuoys and receivers, torpedo technologies and radars.
Relationship between the parties	Both parties supply goods and services to the Australian Defence Organisation (comprising the Australian Department of Defence and the Australian Defence Force) and to defence industry companies.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have the effect of substantially lessening competition in any market. In

	reaching its decision, and based on the material before it, the ACCC makes the following findings. • There is no horizontal overlap between the Lockheed Martin and Ultra Maritime products and services being supplied in Australia. • Post-Acquisition, the merged firm would not have the ability to foreclose rival suppliers of components to customers in Australia.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**